TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JUNE 29, 2026
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Brian Stress, Joan Spier.
Absent: Cheryll Woods-Flowers.
Staff: Kara Browder, Brent Leary, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

▶ *Mr. Branch moved for approval. Ms. Stevens seconded the motion. All in favor.*

B. Approval of Minutes

▶ *Mr. Branch moved for approval. Ms. Stevens seconded the motion. All in favor.*

C. Public Comment

▶ Mr. Mathew Troy, spoke regarding the removal of Case V-15-26 from the agenda due to a restrictive covenant prohibiting subdivision of a lot. He agreed that the lot should not be allowed to be subdivided.

D. General Correspondence

1. **Case V-31-24, 847 O'Sullivan Drive, TMS# 559-05-00-100,** Request for an extension of the vested rights period in accordance with Chapter 151.

▶ *Mr. Branch moved for approval of the vested rights extension. Ms. Stevens seconded the motion. All in favor.*

All correspondence received was linked to the agenda.

E. Explanation of Procedures
F. Administration of Oath

▶ Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-14-26, 843 Bridge Point Circle, TMS# 514-13-00-146,** Request relief from the strict application of the standards in Table §156.039-1 R2 Dimensional Standards to allow a ten-foot (10') rear yard setback for a new detached house. The ordinance requires a twenty-five-foot (25') rear yard setback. Additionally, request relief from the strict application of §156.622(C)(1) to allow a critical area buffer width of ten feet (10'). The ordinance requires a minimum buffer width of twenty feet (20') and an average buffer width of thirty-five feet (35'). Correspondence

- Ms. Browder reviewed staff comments with the Board.

- Ms. Liz Stanton, architect for the owner, reviewed the request with the Board.

- Mr. Wood administered the oath to Mr. Joe Dawson.

- Mr. Joe Dawson, 840 Bridge Point Circle, stated that previous plans for this lot had been approved by the Town and DHEC, allowing construction to the bulkhead. He stated that he is not opposed to the proposed floor plan. He suggested that the variance should be approved.

There being no further comments, Mr. Wood moved to rebuttal.

- Ms. Stanton clarified that the site plan shows the size of a potential house.

- Mr. Wood asked if a 2200 sf house could be built with a variance, but not as extensive as proposed. Ms. Stanton answered in the affirmative. Mr. Wood asked if a 2200 sf home has been considered. Ms. Stanton answered that a home plan has not been determined.

- Mr. Barrow asked who the owner is. Ms. Stanton answered that the owner is present. Mr. Barrow asked when the home was purchased. Ms. Stanton answered that it was purchased in 1998. Mr. Barrow suggested that there is a difference between the property being purchased prior to the new ordinance being enacted and purchasing the property after the ordinance was enacted. Mr. Barrow asked if discussion of a conceptual design has been discussed. Ms. Stanton answered in the affirmative and suggested that the minimum size would

have to be 2200 with possibly as large as 3500 sf. Mr. Barrow asked if larger than 3500 sf could be designed. Ms. Stanton answered that it could be possible, but not probable based on housing costs. Mr. Barrow suggested that not knowing the proposed size of the home, it would be difficult to determine the size variance needed. He suggested that a basic house plan.

- Mr. Wood closed public comment.

- Mr. Wood suggested that the covenant requiring a minimum 2,200 square foot home should be considered. He suggested that a deferral should be considered or the approval conditioned on the size of home that meets the covenant requirements.

- Mr. Branch suggested that allowing a ten foot setback would allow an appropriate home.

- Mr. Barrow agreed that it is a logical decision, especially because the owner purchased the lot prior to the ordinance being in effect.

- Ms. Spier asked if the current zoning requirements should apply. Mr. Barrow answered in the affirmative but suggested that the variance would be appropriate based on the length of time the owner has owned the lot. Ms. Spier asked if the request is for a ten foot setback. Mr. Wood answered in the affirmative.

- The Board deliberated.

- Mr. Wood opened public comment and asked if a two story home is desired. Ms. Stanton answered in the affirmative. Mr. Wood closed public comment.

- *Mr. Wood moved for approval with the condition that the setback variance is only allowed for as much needed to accommodate a 1100 square foot footprint to be reviewed and approved by staff. Mr. Barrow seconded the motion. Motion failed on a 3 to 3 vote with Mr. Barrow, Mr. Spier, and Mr. Wood in favor; Mr. Stress, Mr. Branch, and Ms. Stevens opposed.*

- Mr. Branch suggested that a definitive setback should be determined.

- Mr. Wood opened public comment.

- Mr. Barrow asked the minimum setback needed for the house design for the rear and side setback. Ms. Browder clarified that only a rear setback variance is requested. Ms. Stanton answered that because of not having a design identified, she is not sure the exact variance is needed.

- Ms. Spier asked if a front variance was considered. Ms. Stanton answered that this was considered, but the HOA was not in favor.

- Mr. Wood closed public comment.

- Mr. Barrow suggested that a lesser variance should be considered identifying the exact setback being allowed. Ms. Spier suggested that the building setback is the most relevant.

- Mr. Wood suggested that a deferral might be appropriate. Mr. Barrow agreed.

- *Mr. Branch moved for deferral. Ms. Spier seconded the motion. Motion passed on a 5 to 1 vote with Mr. Stress, Mr. Barrow, Mr. Branch, Mr. Spier, and Mr. Wood in favor; Ms. Stevens opposed.*

2. **Case V-15-26, 1363 Majore Street, TMS# 532-07-00-094, and 835 Erckmann Street, TMS# 532-07-00-093,** Request relief from the strict application of §156.025(B) to allow the subdivision of two existing lots into three residential lots, yielding three dwelling units. Based on the density calculation in §156.1616, the subject property is permitted a maximum of one dwelling unit. Correspondence

This item was withdrawn by staff.

There being no further business, the meeting adjourned at 6:50 pm.

Submitted by,
L. Lynes
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